Gajanan S/O Chandrabhan Sutar vs State Of Maharashtra Thr Pso., Ps ... on 6 February, 2026

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR.

CRIMINAL APPLICATION (ABA) NO. 92 OF 2026
Gajanan S/o. Chandrabhan Sutar
Vs.
State of Maharashtra

Office Notes, Office Memoranda of Court's or Ju
Coram, appearances, Court's Orders
or directions and Registrar's order

Shri S. A. Mohta, Advocate for applicant.
Shri N. S. Autkar, APP for non-applicant/State.

CORAM :- M. W. CHANDWANI, J.

DATED :- 06.02.2026 Heard.

2. Issue notice to the non-applicant, returnable on 23.02.2026.

3. The learned APP waives service of notice for the non-applicant/State.

4. The applicant seeks anticipatory bail in connection with Crime No. 457/2025 registered with Police Station Khandala, Dist. Yavatmal for the offences punishable under Sections 123, 274, 275, 223 of the Bhartiya Nyaya Sanhita, 2023 and Sections 26(2), 27(3), 30(2)(a) and 59 of the Food Safety and Standards Act, 2006.

5. Since, the contraband scented gutka has already been seized, prima facie it appears that custody of the present applicant may not be required. Hence, a RR Jaiswal 2 45-aba-92-26.odt case is made of for grant of ad-interim relief to the applicant. Hence, the following order:-

> i) Pending the application, in the event of arrest, applicant- Gajanan S/o. Chandrabhan Sutar be released on furnishing a P.R. bond of Rs. 25,000/- with one solvent surety in the like amount in connection with Crime No. 457/2025 registered with Police Station Khandala, Dist. Yavatmal for the offences punishable under Sections 123, 274, 275, 223 of the Bhartiya Nyaya Sanhita, 2023 and Sections 26(2), 27(3), 30(2)(a) and 59 of the Food Safety and Standards Act, 2006.

ii) The applicant shall appear before the concerned Police Station on 10th and 13th of February, 2026 between 10:00 am to 12 noon and shall co-operate in the investigation.

(M. W. CHANDWANI, J.) Signed by: Mr. Rajnesh Jaiswal RRToJaiswal Designation: PA Honourable Judge Date: 06/02/2026 19:08:01